

ONLINE TENDER FOR PROVIDING MANPOWER AT CMSS HQ. & WAREHOUSES AT 20 LOCATIONS

Tender Inviting Authority invites tender through online bid submission at CPPP website: www.eprocure.gov.in for hiring of manpower agency to Central Medical Services Society for providing manpower as mentioned below:

Sl.No.	Schedule	Manpower	Nos. of Manpower
1	Schedule -1	Executive Assistants/DEOs [Procurement, Administration, Finance, Logistic & Quality Assurance] and Housekeeping Staff (Skilled, Semi Skilled and Un-skilled) for CMSS H.Q. New Delhi	Procurement - 03 Administration - 04 Finance - 10 Logistic (LSC) - 06 Quality Assu. - 02 HK (Skilled) - 10 HK (Un-skilled) - 04 Security Guard - 04 (Semi-skilled)
2	Schedule -2	Junior Pharmacists, DEOs & Housekeeping (Un-skilled) for 20 Locations of Warehouses of CMSS.	Junior Pharmacist - 20 DEOs - 16 Housekeeping Staff - 20 (Un-skilled)

BIDDERS ARE FREE TO QUOTE THEIR BIDS FOR ANY SCHEDULE.

Bid Submission Start Date and Time : 18.12.2020 at 11.00 AM

Bid Submission End Date and Time : 11.01.2021 at 4.00 PM

CENTRAL MEDICAL SERVICES SOCIETY

Ministry of Health & Family Welfare

(Government of India)

2nd Floor, Vishwa Yuvak Kendra, Teen Murti Marg,
Chanakyapuri, New Delhi-110021.

Website: cmss.gov.in, Tel. 011-21410905/6 & Fax: 011-21410849

Email: cmssgmad@gmail.com

Website: www.cmss.gov.in & www.eprocure.gov.in

File No.: CMSS/ADMN./255/2020**CENTRAL MEDICAL SERVICES SOCIETY****(An Autonomous Society under Ministry of Health and Family Welfare, Govt. of India)****2nd Floor, Vishwa Yuvak Kendra, Teen Murti Marg,****Chanakyapuri, New Delhi-110021.****Website: cmss.gov.in, Tel. 011-21410905/6 & Fax: 011-21410849**

Dated: 18.12.2020

ONLINE TENDER FOR PROVIDING MANPOWER BELOW MENTIONED SCHEDULED**[Manual bids shall not be accepted]**

Sl.No.	Schedule	Manpower
1	Schedule -1	Executive Assistants/DEOs [Procurement, Administration, Accounts, Logistic & Quality Assurance] and Housekeeping Staff (Skilled, Semi-Skilled and Un-skilled) for CMSS H.Q. New Delhi.
2	Schedule -2	Junior Pharmacists, DEOs & Housekeeping (Un-skilled) for 20 Locations Warehouses of CMSS

CMSS, an Autonomous Society of Ministry of Health & Family Welfare , Govt. of India, is responsible for procuring quality drugs, vaccines & contraceptives directly from the manufacturers through open tenders system and ensures timely supply of Drugs, Medicines, Vaccines & Contraceptives to all the States/ UT Governments. **Bidders are free to quote their bids for any schedule.**

TENDER DOCUMENTS MAY BE DOWNLOADED FROM CPPP WEBSITE: www.eprocure.gov.in AS PER THE SCHEDULE AS GIVEN BELOW:

2. Schedule –

- | | | |
|-------|---|---|
| i. | Published date & time | : 18.12.2020 at 11.00 AM. |
| ii. | Bid document download start date & time | : 18.12.2020 at 2.00 PM. |
| iii. | Pre Bid Meeting | : 23.12.2020 at 11.30 AM. |
| iv. | Bid submission start date & time | : 24.12.2020 at 02.30 PM. |
| v. | Bid end date & time | : 11.01.2021 at 4.00 PM |
| vi. | Date & time for opening of Technical Bid | : 12.01.2021 at 4.30 PM. |
| vii. | Date and Time for opening of Financial Bids for technically qualified bidders | : To be decided and intimated later |
| viii. | Validity of tenders | : 120 days from the date of opening of tenders. |

Bids shall be submitted online only at CPPP Website: www.eprocure.gov.in

Tenderers/Contractors are advised to follow the instructions provided in the 'Instructions to the Contractor/Tenderer for the e-submission of the bids online through the Central Public Procurement Portal for hiring of manpower Agency at www.eprocure.gov.in

Bid documents may be scanned with **100 dpi with black and white** option which helps in reducing size of the scanned document. No more than one tender shall be submitted by one contractor or contractors having business relationship.

Address for Communication: Central Medical Services Society

2nd Floor, Vishwa Yuvak Kendra,
Teen Murti Marg, Opposite Chanakyapuri Police Station,
Chanakyapuri, New Delhi-110021.

3. Tender documents can be downloaded from CPP Portal or collected from Administrative Officer, Central Medical Services Society, 2nd Floor, Vishwa Yuvak Kendra, Chanakyapuri, New Delhi-110021 on all working days from 23.12.2020 between 10 AM to 4.00 PM.

Tender Inviting Authority: DG&CEO, Central Medical Services Society, 2nd Floor, Vishwa Yuvak Kendra, Chanakyapuri, New Delhi-110021 (hereinafter referred as **Tender Inviting Authority** unless the context otherwise requires).

Tender Accepting Authority: DG&CEO, Central Medical Services Society (hereinafter referred as **CMSS**, unless the context otherwise requires)

Tender Inviting Authority invites tender through online bid submission at CPPP website: www.eprocure.gov.in for hiring of manpower agency to Central Medical Services Society for providing manpower as mentioned below:

Sl.No.	Schedule	Manpower
1	Schedule -1	Executive Assistants/DEOs [Procurement, Administration, Accounts, Logistic & Quality Assurance] and Housekeeping Staff (Skilled, Semi-skilled and Un-skilled) for CMSS H.Q., New Delhi
2	Schedule -2	Junior Pharmacist, DEOs & Housekeeping (Un-skilled) for 20 Locations Warehouses of CMSS

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1. Scope of Work and General Instructions for Tenderers

- i. The Central Medical Services Society, New Delhi requires the services of a reputed, well established and financially sound Manpower Company / Firm / Agency for providing manpower to perform jobs assigned as per the below mentioned schedule:

Sl.No.	Schedule	Manpower
1	Schedule -1	Executive Assistants/DEOs [Procurement, Administration, Accounts, Logistic & Quality Assurance] and Housekeeping Staff (Skilled & Un-skilled) and Security Guard (Semi-skilled) for CMSS H.Q. New Delhi.
2	Schedule -2	Junior Pharmacist, DEOs & Housekeeping (Un-skilled) for 20 Locations Warehouses of CMSS

- ii. The contract is likely to commence from 01.02.2021 and shall continue for **a period of Two Years**. CMSS shall have option to extend the contract for a period of one year, if mutually agreed between the CMSS and the Service Provider on the same terms and conditions. Total period of contract shall not exceed **Three Years** including original period.

2. Essential Qualification for Executive Assistants, Junior Pharmacists, DEOs, Housekeeping (Skilled & Un-skilled) and Security Guard (Semi-skilled).

In this CMSS assessment the initial requirement seems to be for Executive Assistant, Junior Pharmacists, DEOs, Housekeeping Staff (Skilled & Un-skilled) and Security Guard (Semi-skilled). The Eligibility criteria of Executive Assistant, Junior Pharmacists, DEOs & Housekeeping staff are given below:

Schedule -1: Executive Assistants /DEOs/Housekeeping (Skilled, Semi-skilled & Un-skilled)	
For Administration /Procurement/ Logistics	1. Age: Below 50 years as on the date of employment. 2. Should be a Graduate from UGC recognized University. 3. Should have 02 years of post qualification experience in the job of an Assistant or higher level in Central/State Govt./Public Undertaking /Reputed private Company. 4. Should have reasonable level of proficiency in Microsoft Word, Excel and PDF Document. 5. Relaxation in age & experience will be considered in exceptional case.
For Quality Assurance	1. Age: Below 50 years as on the date of employment. 2. Educational qualification should be B.Pharm from PCI approved Institute. 3. Should have 02 years of post qualification experience as chemist in a pharmaceutical testing laboratory. 4. Exposure in handling regulatory audits on store/warehouse/ distribution functions of Pharmaceutical organizations in accordance with GMP regulation. 5. Hands on experience on working in ERP system. 6. Should have reasonable level of proficiency in Microsoft Word,

	Excel and PDF Document. 7. Relaxation in age & experience will be considered in exceptional case.
For Accounts	1. Age: Below 50 years as on the date of advertisement. 2. B.Com/M.Com. from a UGC recognized University. 3. Should have 2 years of post qualification experience in the field of Accounts/Finance function in a reputed firm. 5. Should have knowledge and experience of Tally 6. Relaxation in age & experience will be considered in exceptional case. 7. For retirement from Central Govt/PSUs may apply upto 65 Age.
Housekeeping (Skilled)	1. 10th/12th Pass and Computer Knowledge & Graduate preferable. Commensurate with Skilled category as per Notified in Govt. of NCT of Delhi Labour Deptt. issued time to time. 2. Age limit - upto 40 years. 3. Relaxation in age & experience will be considered in exceptional case
Security Guard (Semi-Skilled)	1. 8th Pass [Matriculate] with experience of Security Commensurate with Semi-skilled category as per above mentioned notification. 2. Age limit - upto 40 years. 3. Relaxation in age & experience will be considered in exceptional case
Housekeeping (Un-skilled)	1. Commensurate with Un-skilled category as per Govt. of NCT of Delhi Labour Deptt. issued from time to time. 2. Age limit - upto 40 years 3. Relaxation in age & experience will be considered in exceptional case

Schedule –II: Junior Pharmacist-20 Nos., DEO -16 Nos. & Housekeeping (Un-skilled)-20

Jr. Pharmacist	1) Age: Below 50 years on the date of employment. 2) Educational Qualification: Diploma in Pharmacy/B. Pharma degree from a reputed university/Institute recognised by Pharmacy Council of India. 3) Experience: Minimum 03 years post qualification for D. Pharma and 01 years post qualification for B. Pharma in Pharmaceutical store/ warehouse/ distribution functions. 4) Experience in Good Storage & Distribution Practices in accordance with GMP regulations. 5) Exposure in handling regulatory audits on store/warehouse/distribution functions of Pharmaceutical organizations in accordance with GMP regulation. 6) Hands on experience on working in ERP system. 7) Knowledge of local language desirable. 8) Relaxation in age & experience will be considered in exceptional case. 9) For retirement from Central Govt/PSUs may apply upto 65 Age.
Data Entry Operators	1) Age: Below 50 years of age as on the date of employment. 2) Educational Qualification: Graduate from a recognized University. 3) Well conversant with working of computers and should

	necessarily have knowledge of MS Excel, MS Word and MS Power Point. 4) Should have 2 years of experience of working as in Central /State Govt. /Public Undertaking/Reputed Private institutions. 5) Relaxation in age & experience will be considered in exceptional case. 1) For retirement from Central Govt/PSUs may apply upto 65 Age.
Housekeeping (Un-skilled)	1. Commensurate with Un-skilled category as per Govt. of NCT of Delhi Labour Deptt. issued from time to time. 2. Age limit - upto 35 years. 3. Relaxation in age & experience will be considered in exceptional case

3. Leave

The staff may be given 12 days casual leave in one calendar year on pro-rata basis i.e. 2 days for every three completed months. Leave of no other kind would be admissible and will be subject to deduction of wages proportionately.

4. EARNEST MONEY DEPOSIT [EMD].

- i) The interested Company/firm/Agency may submit the tender document, complete in all respects, along with Earnest Money Deposit (EMD) for the following scheduled in the favour of Central Medical Services Society payable at New Delhi.

Sl.No.	Schedule	EMD
1	Schedule -1	Rs. 2.00 Lakhs
2	Schedule -2	Rs. 2.50 Lakhs

If applying for both schedules, the total EMD will be 4.50 lakhs.

5) General Condition.

- (i) The Earnest Money Deposit of above mentioned may be paid by RTGS/NEFT in the following Bank Account.

Beneficiary Name : **Central Medical Services Society**
A/C No. : **32719062216**
Bank Name : **State Bank of India**
Branch : **Nirman Bhawan, Maulana Azad Road, New Delhi.**
IFSC Code : **SBIN0000583**

Sl.No.	Schedule	EMD
1	Schedule -1	Rs. 2.00 Lakhs
2	Schedule -2	Rs. 2.5 Lakhs

- (ii) The Tenderer should submit the soft copies of following documents in Technical Bid (All the documents submitted should bear signature and stamp of the Tenderer)."
- (iii) Signed and Scanned copy of RTGS/NEFT e-receipt in r/o Earnest Money Deposit (EMD) as per above mentioned schedule. If apply for both schedules, EMD is Rs. **4.50 Lakhs** and Scanned copy of details of EMD submitted] as per **Annexure-III**.
- (iv) Exemption from payment of Earnest Money Deposit to MSE (Micro and Small Enterprises).

- (a) MSE firms as per classification given in MSME Act, 2006 and holding Permanent Registration Certificate from the District Industries Centres or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises will be granted exemption from payment of Earnest Money Deposit in respect of items for which the Registration Certificate has to be produced.
- (b) The MSE Units will be required to furnish a notarized undertaking (as per **Annexure-VII**) to the effect that in the event of non fulfillment or non observance of any of the conditions stipulated in the contract, the MSE Unit shall pay a penalty, equivalent to the Earnest Money Deposit to offset the loss incurred by the Tender Inviting Authority consequent on such breach of contract.
- (c) The MSEs participating in the tender shall enclose with their tender a copy of their valid registration certificate with District Industries Centres or Khadi and Village Industries Commission or Khadi and Village Industries Board or Coir Board or National Small Industries Corporation or any other body specified by Ministry of Micro Small and Medium Enterprises in support of their being an MSE, failing which their tender will be liable to be ignored.
- (v) The tendering Service Provider is required to submit scanned copies of the following documents. (Self-attested) along with the technical bid.

1.	Name of Tendering Company/ Firm/ Agency (Attach certificates of registration)	Page No.
2.	Name of proprietor/Director of Company/Firm/Agency	
3.	Full Address of Registered Office with Telephone No., FAX and E-Mail	
4.	Full address of operating/ Branch Office with Telephone no., FAX and E-Mail.	
5.	Banker of Company/Firm/ Agency with full address (Attach certified copy of statement of A/C for the last three years)	
6.	PAN/GIR No. (Attach attested copy)	
7.	GST. (Attach attested copy)	
8.	E.P.F. Registration No. (Attach attested copy)	
9.	E.S.I. Registration No. (Attach attested copy)	
10.	Documents showing completing contract at least one service of value not less than Rs.40.00 Lakhs for Schedule-1 and Rs. 50.00 Lakhs for Schedule-2 per annum related to providing manpower (Attach attested copy-only Govt/PSU Contract will be considered)	
11.	Give details of the major similar contracts handled by the tendering Company/Firm/Agency on behalf of PSUs and Government Departments during the last three years in the following format. Attested copies of work orders may also be attached.	
12.	Affidavit stating that the agency is not been black listed by Centre / State Government / PSU (Attach copy)	
13.	Number of similar assignments; Manpower provided to public/private/PSU in last 3 years by the Agency (Attach Copy)	
13.	Additional information, if any, (Attach separate sheet, if required)	
14	Performance certificates from atleast two organizations where the firm provided manpower ((Govt./PSUs) in last three years by the Agency on their letter head (Attach attested copies) and present organization satisfactory report is also to be attached.	
15	Annual turnover statement for 3 years i.e. 2017-18, 2018-19 & 2019-20 should be furnished (Attach attested copy).	

16	Self attested valid registration certificate under “Company Act”/Partnership/MOU/JVC	
17	Self attested copy of valid License and Number under “Contract Labour Act”	
18	Notarized Undertaking by MSE Companies (Attach attested copy).	
19	Complaint received against Agency from Govt/PSU etc. if any (Attach copy)	
20.	List of other clients.	

(vi) Conditional bids shall not be considered and will be out rightly rejected at the very first instance.

(vii) The Competent Authority of Central Medical Services Society, New Delhi reserves the right to annul any or all bids without assigning any reason.

6. ELIGIBILITY CRITERIA

- (a) The Service Provider should be registered with the appropriate registration authority, like: *under the “Company Act” or with the concerned authorities of the labour dept .Under Contract LabourAct-1970”*
- (b) The Registered Office or one of the Branch office of the Service Provider should be located Delhi NCR.
- (c) The Service Provider should have at least **Three years’ experience** in providing manpower to Govt. department/PSUs & Banks.
- (d) The Service Provider should have currently deployed at **least 100 or more employees for Schedule-1 and 100 or more for Schedule-2 in various organizations. If apply for all schedules the employees should be 200 or more.**
- (e) The Service Provider should have its own Bank Account.
- (f) The Service Provider should be registered with Income Tax and Service Tax departments.
- (g) The Service Provider should be registered with appropriate authorities under Employees Provident Fund and Employees State Insurance Acts.
- (h) Average Annual turnover for Tenderers in the last three years i.e. 2017-18, 2018-2019 and 2019-20 shall not be less than Rs. 2.00 Crore for schedule-1and Rs. 2 Crore for Schedule-2. The turnover for the last year 2019-20 should also be not less than Rs. 1.00 Crore.
- (i) The turnover benchmark given in (i) above will not apply to Micro and Small Enterprises (MSE).
- (j) Documents showing completing contract at least one service of value not less than Rs.40.00 Lakhs for Schedule-1 and Rs. 50.00 Lakhs for Schedule-2 per annum related to providing manpower (Attach attested copy).
- (k) The Service Provider should have a certificate of satisfactory performance (with regard to manpower provided, salary provided to the employee in time and other statutory contribution i.e. ESI, EPF, etc.) from two organization /institutions served during the last three years and satisfactory report for present organization.
- (l) The Service Provider shall submit affidavit stating that the agency or the proprietors of the agency quoting this tender are/have not been blacklisted by Central Government/State Government/any PSU/any other firm.

Non-compliance with any of the above conditions by the Service Provider Company / Agency will amount to non-eligibility for the services for which tender has been floated and its tender will be rejected summarily.

7. TECHNICAL REQUIREMENTS FOR THE TENDERING COMPANY / FIRM/ AGENCY

The tendering Service Provider Company / Firm / Agency should fulfill the following technical specifications:

1. The Service Provider should be registered with the appropriate registration authority, like: under the “Company Act” or with the concerned authorities of the labour deptt. under Contract labour Act-1970.
2. The Registered Office or one of the Branch Office’s of the Service Provider Firm / Agency should be located either in Delhi NCR.
3. Service Provider Company / Firm/ Agency should have at least three **years experience** in providing manpower to Govt. deptt./PSUs/Banks **preferably in the health and/or development sector.**
4. Service Provider Company / Firm / Agency should have its own Bank Account.
5. Service Provider Company/ Firm/ Agency should be registered with Income Tax and Service Tax departments.
6. Service Provider Company/ Firm/Agency should be registered with appropriate authorities under Employees Provident Fund and Employees State Insurance Acts.
7. **Documents showing completing contract at least one service of value not less than Rs. 40.00 Lakhs for Schedule-1 and Rs. 50.00 Lakhs for Schedule-2 per annum related to providing manpower (Attach attested copy).**

8. TERMS AND CONDITIONS

A. General

- i. The contract is likely to commence from **01.02.2021** and shall continue for **a period of Two Years**. CMSS shall have option to extend the contract for a period one year, if, mutually agreed between the CMSS and the Service Provider on the same terms and conditions. Total period of contract shall not exceed **three years** including original period and period of extension.
- ii. The contract shall automatically expire **after Two years** from commencement of the contract unless extended further by the mutual consent of contracting Agency and this CMSS.
- iii. The contracting Company/ Firm/ Agency shall not be allowed to transfer, assign, pledge or sub-contract its rights and liabilities under this contract to any other Agency without the prior written consent of this CMSS.
- iv. The tenderer will be bound by the details furnished by him/her to CMSS, while submitting the tender or at subsequent stage. In case, any of such documents furnished by him/ her is found

to be false at any stage, it would be deemed to be a breach of terms of contract making him/her liable for legal action besides termination of contract.

- v. Financial bids of only those tenderers who are declared qualified technically shall be evaluated.
- vi. The Director General and Chief Executive Officer, CMSS reserves right to terminate the contract during initial period also after giving **three months notice to the contracting Agency**. In case the contractor desires to terminate the contract during its period of pendency, he shall have to give a **notice of three months to CMSS**.
- vii. The contracting service provider shall ensure that the manpower deployed at CMSS, conforms to the eligibility conditions of age and educational and professional qualification, etc. local language skills and experience as prescribed in the Tender Document.
- viii. The manpower employed by the service provider shall be required to work normally as per the CMSS working days i.e. from **Monday to Friday at 9.00 AM to 5.30 PM with a lunch break for ½ hrs from 1.00 PM to 1.30 PM**. The manpower may also be called upon to perform duties on Saturday, Sunday and other gazetted holidays, if required. **No extra wages will be paid for attending the office on such holidays.**
- ix. The contracting Company/ Firm/ Agency shall furnish the following documents in respect of the individual Attendants who will be deployed by it in this Department before the commencement of work.

Sl. No.	Requirement	Time period in which it must be made available
1	List of persons shortlisted by service provider for deployment at CMSS containing full details i.e. date of birth, marital status, address, educational and professional qualification, experience etc	Before commencement of work
2	Bio-data of the person to be deployed with photograph.	Before commencement of work
3	Name and contact number and address of the coordinator deputed for CMSS	Before commencement of work
4	Certificate of verification of antecedents of persons by local police authority	Within one month of joining work
5	EPF account numbers of the staff deployed	Within one month of joining work
6	ESI card (if applicable)	Within one month of joining work
7	Police Verification for all deployed candidates.	Within one month of joining work.

- x. In case, the person employed by the successful Company/ Firm/ Agency commits any act of omission/ Commission that amounts to misconduct / indiscipline/ incompetence and security risks, the successful Company/ Firm/ Agency will be liable to take appropriate disciplinary

action against such persons, including their removal from site of work, if required by the CMSS within 2 days of being brought to their notice.

- xi. The tendering company shall provide identity cards to the personnel deployed in the CMSS carrying the photograph of the personnel and personal information as to name, DoB, Age and Identification mark etc. It may be ensured that deployed staff/manpower always display the ID Card while on duty in CMSS premises.**
- xii. The tendering agency will responsible for Police Verification of the deployed employees should be completed within one month from date of joining.**
- xiii. The service provider shall ensure that any details of office, operational process, technical know-how, security arrangements, and administrative/ organizational matters are not divulged or disclosed to any person by its personnel deployed in the CMSS.
- xiv. The service provider shall ensure proper conduct of his/her personnel in office premises, and enforce prohibition of consumption of alcoholic drinks, paan, smoking, loitering without work etc.
- xv. The person deployed shall be required to report for work at 9:00 AM to the CMSS office under whom they are deployed which will be intimated separately and would leave at 5.30 PM. In case, person deployed is absent on a particular day or comes late/ leaves early on three occasions, half day's wage shall be deducted. In case of repetition of such instances, the Administrative action will be taken as deemed fit.
- xvi. The Agency shall depute a Coordinator, out of the deployed personnel, who would be responsible for immediate interaction with the Central Medical Services Society, New Delhi so that optimal services of the persons deployed by the agency could be availed without any disruption. The name & Telephone number of the nominated coordinator shall be provided to CMSS, Delhi. The coordinator shall depute in the office of CMSS its own cost.**
- xvii. The service provider shall be solely responsible for the redressal of grievances / resolution of disputes relating to persons, it deploys with CMSS. The service provider must instruct that the persons deployed at CMSS should not involve CMSS in any manner. The CMSS shall, in no way, be responsible for settlement of such issues whatsoever.**
- xviii. It will be the responsibility of the service providing Agency to meet transportation, food, medical and any other requirements in respect of the persons deployed by it (Agency) in this CMSS and CMSS will have no liabilities in this regard.
- xix. For all intents and purposes, the service providing Agency shall be the "Employer" within the meaning of different Labour Legislations in respect of Attendants so employed and deployed in CMSS. The persons deployed by the Agency in the CMSS shall not have claims of any**

Master and Servant relationship nor have any principal and agent relationship with or against CMSS, New Delhi.

- xx. The service providing Agency shall be solely responsible for the redressal of grievances / resolution of disputes relating to persons deployed. The service provider (Agency) must instruct that the persons deployed at CMSS should not involve CMSS in any manner. The CMSS shall, in no way, be responsible for settlement of such issues whatsoever.**
- xxi. CMSS shall not be responsible for any damages, losses, claims, financial or other injury to any person deployed by service providing Agency in the course of their performing the functions/ duties, or for payment towards any compensation.
- xxii. The persons deployed by the service providing Agency shall not claim nor shall be entitled to pay, perks and other facilities admissible to casual, ad-hoc, regular/ confirmed employees of CMSS during the currency or after expiry of the contracts.
- xxiii. In case of termination of this contract on its expiry or otherwise, the persons deployed by the service providing Agency shall not be entitled to and will have no claim, for any absorption nor for any relaxation for absorption in the regular/ otherwise capacity.
- xxiv. The agency will provide the list of short listed candidates to CMSS. CMSS may conduct interaction at CMSS Headquarter for final selection of candidates. Expenses towards TA/DA for appearing in interaction if any shall not be borne by CMSS.
- xxv. The agency may submit bid by quoting cost to company (CTC) price plus service charge and GST as per BOQ. **In case, the agency quotes NIL service charges** or un-realistically low service charge, the responsibility to meet corresponding expenses on its own will be that of the agency. The CMSS expects that the agency will not subsequently cut cost in providing appropriate resume and meeting other compliances as laid down in tender.
- xxvi. The service provider shall also inform in the bid document about the complaints including Court cases made against it or any nature whatsoever for the last three years. Failure in the part of service provider will make it liable for debarment for a period of two years and its bid will be summarily rejected.
- xxvii. **The contractor shall not charge any kind of charges as registration fee etc. from the existing outsourced employees of CMSS.**
- xxviii. **The last payment of the Company will be cleared only after ascertaining clearance o all liabilities pending with the Company.**

B. FRAUD AND CORRUPT PRACTICES

- i. The applicant and their respective officers, employees, agents and advisers shall observe the highest standard of ethics during the Bidding Process. Notwithstanding anything to the contrary contained herein, the CMSS may reject an Application without being liable in any manner whatsoever to the Applicant if it determines that the Applicant has, directly or

indirectly or through an agent, engaged in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice in the Bidding Process.

- ii. Without prejudice to the rights of the CMSS Clause i. hereinabove, if an Applicant is found by the CMSS to have directly or indirectly or through an agent, engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice, during the Bidding Process, such Applicant shall not be eligible to participate in any tender or RFQ issued by CMSS during a period of 5 (five) years from the date, such Applicant is found by the CMSS to have directly or indirectly or through an agent, engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice as the case may be.
- iii) For the purposes of this clause 1, the following terms shall have the meaning hereinafter respectively assigned to them:
 - a) “Corrupt practice” means (i) the offering, giving, receiving, or soliciting, directly or indirectly of anything of value to influence the actions of any person connected with the Bidding Process or (ii) save and except as permitted, engaging in any manner whatsoever, whether during the Bidding Process or after the issue of the LOA or after the execution of the Agreement, as the case may be, any person in respect of any matter relating to the Project or the LOA or the Agreement, who at any time has been or is a legal, financial or technical advisor of the Authority in relation to any matter concerning the Project or the LOA or the Agreement.
 - b) “Fraudulent practice” means a misrepresentation or omission of facts or suppression of facts or disclosure of incomplete facts, on order to influence the Bidding Process;
 - c) “Coercive Practice” means impairing or harming or threatening to impair or harm, directly or indirectly, any person or property to influence any person’s participation or action in the Bidding Process;
 - d) “undesirable practice” means (i) establishing contact with any person connected with or employed or engaged by the Authority with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the Bidding Process; or (ii) having a Conflict of Interest; and
 - e) “restrictive practice” means forming a cartel or arriving at any understanding or arrangement among Applicants with the objective of restricting or manipulating a full and fair competition in the Bidding Process;
 - f) “Undesirable Practice” means (i) establishing contact with any person connected with or employed or engaged by the Authority with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the Bidding Process; or (ii) having a Conflict of Interest; and “restrictive practice” means forming a cartel or arriving at any understanding or arrangement among tenderers with the objective of restricting or manipulating a full and fair competition in the Bidding Process.

C. LEGAL

- (a) The Service provider shall be responsible for compliance of all statutory provisions relating to Minimum wages, Provident Fund, and Employees State Insurance etc. in respect of the person’s deployed by it in CMSS.

- (b) The Service provider shall also be liable for depositing all taxes etc. on account of services rendered by it to CMSS to concerned tax collection authorities from time to time as per extant rules and regulations on the matter.
- (c) The Service provider shall maintain all statutory registers under the applicable laws. The Agency shall produce the same, on demand, to the concerned authority of CMSS or any other authority under Law.
- (d) The Tax Deduction at Source (T.D.S.) shall be deducted as per the provisions of Income Tax law, as amended from time to time and a certificate to this effect shall be provided to the service provider by CMSS.
- (e) In case, the tendering service provider fails to comply with any statutory/ taxation liability under appropriate law and as a result thereof CMSS is put to any loss/ obligation, monetary or otherwise, the CMSS will be entitled to get itself reimbursed out of the outstanding bills or the Performance Security Deposit of the service provider, to the extent of the loss or obligation in monetary terms.
- (f) Settlement of disputes will be as per Indian Arbitration and Conciliation Act-1996 and venue will be CMSS, New Delhi.
- (g) **No suit, prosecution or any legal proceedings shall be lie against the Tender Inviting Authority or any person for anything that is done in good faith or intended to be done in pursuance of the tender.**

D. FINANCIAL

- i. Signed and Scanned copy of RTGS/NEFT e-receipt in r/o Earnest Money Deposit (EMD) of **Rs. 2.00 Lakhs** for Schedule-I & **Rs. 2.50 Lakhs** for Schedule-II and **Rs. 4.50 Lakhs** for Both Schedules [Scanned copy of details of EMD submitted] as per **Annexure-III**.
- ii. The EMD in respect of the Agency which do not qualify the Technical Bid (First Stage) / Financial Bid (Second competitive stage) shall be returned to them without any interest. **Further, if the Agency fails to deploy manpower against the initial requirement within 30 days from date of placing the order the EMD shall stand forfeited without giving any further notice.**
- iii. Bids, offering rates which are lower than the minimum wages (as applicable for NCT of Delhi Govt.) for the pertinent category, would be rejected. It means, the wages should be as per Minimum Wages of NCT of Delhi.
- iv. The successful tenderer will have to deposit a Performance Security Deposit equal to **two months wages of staff deployed at the time of placing the work order within 15 days of the receipt of the formal order**. The performance security will be furnished in the form of the Account Payee Demand Draft or Bank Guarantee drawn in favour of Central Medical Services Society payable at New Delhi. The performance security should remain valid for a

period of 90 days beyond the date of completion of all the contractual obligations of the supplier.

- v. In case of breach of any terms and conditions attached to this contract, the performance security Deposit of the Agency will be liable to be forfeited by this CMSS besides annulment of the contract.
- vi. The Agency shall raise the bill, in duplicate, along with attendance sheet to the Division under whom the outsourced personnel has been deployed in the first week of the succeeding month. The division concerned will send the bills duly verified to Administrative Officer for pass and payment as far as possible the payment will be released by the second week of the succeeding month.
- vii. The Claims in bills regarding Employees State Insurance, Provident Fund, and Service Tax etc. should be necessarily accompanied with documentary proof pertaining to the concerned month bill. A requisite portion of the bill/ whole of the bill amount shall be held up till proof is furnished, at the discretion of CMSS.
- viii. Settlement of disputes will be as per Indian Arbitration and Conciliation Act-1996 and Venue will be the Central Medical Services Society, New Delhi.
- ix. The Central Medical Services Society reserves the right to withdraw/ relax any of the terms and conditions mentioned above so as to overcome the problem encountered by the contracting parties.

9) EVALUATION CRITERIA

THE EVALUATION OF TECHNICAL & FINANCIAL BIDS WILL BE DONE SEPERATELY FOR EVERY SCHEDULE.

(A) EVALUATION OF TECHNICAL BIDS

10.1 In the first stage, the Technical Bids will be evaluated on the basis of documents submitted in the technical bids by the bidder. Only those Applicants whose Technical Proposals get a score of 70 (Seventy) marks or more out of 100 (One hundred) shall qualify for further consideration and shall be ranked from highest to the lowest on the basis of their technical score (TS). The scoring criteria to be used for evaluation shall be as follows: -

S. No.	Evaluation Criteria	Maximum Marks	Details of Criteria: Allocation of Marks	Proof to be attached (Annex and documentation)
1.	Financial Capacity of Service Provider	15	Average Annual turnover for last 3 financial years (FY 17 – 18, FY 18-19 and FY 19-20) of the Applicant • Above INR 3 cr. (15 marks) • INR 2.01-3 cr. (10 marks) • upto 2 cr. (5 marks)	Applicants must provide audited financial statements (Balance Sheet, Profit & Loss Statement, Cash Flow Statement) for FY 17 – 18 & FY 18-19.
2.	Manpower Strength of the firm	15	Total number of manpower on payroll for government/PSU clients, as on tender invitation date • above 300 manpower (15 marks) • 201-300 manpower (10 marks) • Upto 200 manpower (5 marks)	
3.	Experience with PSU / Govt. Clients	20	Size of Contractual Manpower Outsourcing Projects undertaken for clients in past 3 years, (as on tender invitation date) in India. • 5 or above PSU / Govt. Clients (20 marks) • 2-4 PSU / Govt. Clients (15 marks) • 1 PSU / Govt. Clients (10 marks)	Applicants must provide the self attested copy of work order from the client.
4.	Experience in supplying manpower in government health sector/government hospital	20	Number of Clients where contractual manpower provided in past 3 years (as on tender invitation date) • 4 or above clients (20 marks) • 2-3 Clients (15 marks) • 1 Client (10 marks)	Applicants must provide the self attested copy of work order from the client.
5.	Years of operation in India	15	Years of operation in India for providing manpower services: • 7 or above years (15 marks)	Applicants must provide the self attested copy of

			marks) • 4-6 years (10 marks) • 1-3 years (5 marks)	work order from the client.
6.	Geographical Presence	15	Bidder should have provided minimum 100 nos. manpower in the state (only in government sector will be considered) • above 10 states (15 marks) • 6-10 states (10 marks) • 1-5 states (5 marks)	Applicants must provide the self attested copy of work order from the client.

(B) SHORT-LISTING OF BIDDERS

10.2 Bidders who get 70 (Seventy) or above marks in the technical score will be technically shortlisted for next stage i.e. opening of financial bids.

(C) EVALUATION OF FINANCIAL BIDS

10.3 In the second stage, the financial bids will be opened of those bidders who get the 70 (Seventy) or above marks in the technical score and evaluation will be carried out. Each Financial Bid will be assigned a financial score (FS).

10.4 CMSS will determine whether the Financial Bids are complete, unqualified and unconditional. The cost indicated in the Financial Bids shall be deemed as final and reflecting the total cost of services. Omissions, if any, in costing any item shall not entitle the bidder to be compensated and the liability to fulfill its obligations as per the TOR within the total quoted price shall be that of the bidder.

10.5 It may be noted that the Second Envelope containing the Detailed Price Offer will be opened only for those bidders whose technical proposals is short listed by the Tender Committee of CMSS as per their technical evaluation and they score minimum 70 out of 100 marks for above mentioned technical parameters. The decision of Tender Committee shall be final and binding and no further correspondence in this regards shall be entertained by the Bidder.

10.6 Technical score of the bidder getting maximum marks in technical evaluation will be taken as 100 & all other (Lower Score) will be evaluated as $TS = \frac{\text{marks obtained by bidders}}{\text{Highest marks obtained by any bidder}} \times 100$.

10.7 Similarly financial score (FS) of bidder quoting lowest rates is taken as 100 & financial score (FS) of other bidders will be calculated as $FS = \frac{[L1 \text{ rates} \times 100]}{[\text{Rates offered by bidder}]}$.

(D) COMBINED AND FINAL EVALUATION

10.8 The bids will finally be ranked according to their combined technical (TS) and financial (FS) scores as follows: -

$S = \text{Technical Score (TS)} \times 0.7 + \text{Financial score (FS)} \times 0.3$

Where S is the combined score, and 0.70 and 0.30 are weights assigned to Technical Bids and Financial Bids, which shall be 0.70 and 0.30 (70:30) respectively.

10.9 The Selected bidder shall be the first ranked bidder (having the highest combined score). The second ranked bidder shall be kept in reserve and may be invited for negotiations in case the first ranked bidder withdraws or fails to comply with the requirements of tender, as the case may be.

(E) ACCEPTANCE OF TENDER

10.10 On finalization of Tender, CMSS will communicate acceptance of the tender by way of letter of acceptance which will conclude a binding contract between the parties and the Purchaser shall act upon such acceptance letter.

10) TECHNICAL BID

For Providing manpower to perform jobs assigned to Executive Assistant, Junior Pharmacists, DEOs, Housekeeping staff (Skilled, Un-skilled and Security Guard [Semi-skilled] for the Central Medical Services Society, 2nd Floor, Vishwa Yuvak Kendra, Chanakyapuri, New Delhi-110021 and its 20 Warehouses.

1.	Name of Tendering Company/ Firm/ Agency (Attach certificates of registration)	Page No.
2.	Name of proprietor/Director of Company/Firm/Agency	
3.	Full Address of Registered Office with Telephone No., FAX and E-Mail	
4.	Full address of operating/ Branch Office with Telephone no., FAX and E-Mail.	
5.	Banker of Company/Firm/ Agency with full address (Attach certified copy of statement of A/C for the last three years)	
6.	PAN/GIR No. (Attach attested copy)	
7.	GST. (Attach attested copy)	
8.	E.P.F. Registration No. (Attach attested copy)	
9.	E.S.I. Registration No. (Attach attested copy)	
10.	Documents showing completing contract at least one service of value not less than Rs. 40.00 Lakhs for Schedule-1 and Rs. 50.00 Lakhs for Schedule-2 per annum related to providing manpower (Attach attested copy- only Govt./PSU Contract will be considered)	
11.	Give details of the major similar contracts handled by the tendering Company/Firm/Agency on behalf of PSUs and Government Departments during the last three years in the following format. Attested copies of work orders may also be attached.	
12.	Affidavit stating that the agency is not been black listed by Centre / State Government / PSU (Attach copy)	
13.	Number of similar assignments; Manpower provided to public/private/PSU in last 3 years by the Agency (Attach Copy)	
14.	Objective Testing and Assessment of Professional Skills of Candidates / Manpower: Agency's process of Scrutinising candidates before providing to the Ministry; Number and type of tests / examinations proposed / conducted by the Agency to ensure that suitable candidates / manpower are going to be provided to the CMSS (Attach Copy)	
13.	Additional information, if any, (Attach separate sheet, if required)	
14	Performance certificates from atleast two organizations where the firm provided manpower ((Govt./PSUs) in last three years by the Agency on their letter head (Attach attested copies) and present organization satisfactory report is also to be attached.	
15	Annual turnover statement for 3 years i.e. 2017-18, 2018-19 & 2019-20 should be furnished (Attach attested copy).	
16	Self attested valid registration certificate under "Company Act"/Partnership/MOU/JVC	
17	Self attested copy of valid License and Number under "Contract Labour Act"	
18	Notarized Undertaking by MSE Companies (Attach attested copy).	
19	Complaint received against Agency from Govt/PSU etc. if any (Attach copy)	
14.	List of other clients.	

The above mentioned documents are to be submitted in Soft copy electronically on the CPP Portal www.eprocure.gov.in as Technical Bid as per date prescribed in schedule.

Signature of authorized person

Name:

Seal:

Date:

Place:

DECLARATION

I, _____ Son / Daughter / Wife of
Shri _____ Proprietor/Director, authorized
signatory of the Agency/ Firm, mentioned above, is competent to sign this declaration and execute
this tender document;

2. I have carefully read and understood all the terms and conditions of the tender and undertake
to abide to them;

3. The information / documents furnished along with the above application are true and authentic
to the best of my knowledge and belief. I / we, am/ are well aware of the fact that furnishing of any
false information/ fabricated document would lead to rejection of my tender at any stage besides
liabilities towards prosecution under appropriate law.

Signature of authorized person

Full Name:

Seal:

Date:

Place:

11. FINANCIAL BID

For providing manpower to perform jobs assigned to Executive Assistants, Junior Pharmacists, DEOs & Housekeeping staff (Skilled, Un-skilled) and Security Guard (Semi-skilled) to Central Medical Services Society, 2nd Floor, Vishwa Yuvak Kendra, Teen Murti Marg, Chanakyapuri, New Delhi-110021 and its 20 Warehouses.

- (a) "Packet 2" contains the Price Bid of the Tenderer.
- (i) Bid should be uploaded online in the form of BOQ.XXXXX.xls as per **Annexure-IX**.
- (ii) Format of the Schedules of price bid is available in **Annexure-IX** for reference only.
- (iii) **GST:-**

If, it is desired by the tenderer to ask for GST to be paid as extra, the same must be specifically stated. In the absence of such stipulation in the tender, no liability of GST will be accepted. Variation in GST or any other applicable tax imposed subsequently by Government shall be allowed.

- (iv) BOQ has column for CTC salary per month (Col.5), Service charge levied by the Agency (Col. 6). The CTC salary will be as per Minimum Wages of Govt. NCT of Delhi issued time to time for Executive Assistant, Junior Pharmacist, DEOs (Graduate), Housekeeping (Skilled and Unskilled) and Security Guard (Semi-skilled). Tenderers have to fill in Service charge in column 6. The total All Inclusive (**AI**) value will be calculated by the system in column 7 as per **Annexure-IX**.

12) METHODOLOGY FOR PLACING ORDER:**(a) Technical bids evaluation criteria:-**

The evaluation committee will be constituted by CMSS to evaluate the Technical Proposals on the basis of their responsiveness to the Terms of Reference. The bids meeting the eligibility criteria will be shortlisted for opening of financial bid.

(b) Financial bids evaluation criteria:-

- (i) Financial bid should be as per format enclosed (**Annexure-IX**), failing which non-responsive bids will be rejected.
- (ii) Comparative statements (CST) will be prepared on the basis of total of all inclusive prices as **Annexure –IX**.
- (iii) Order will be placed as per tender clause no. 9 (D).
- (iv) If the financial bid of the two or more Service Provider is found to be the same, the service provider will be selected on the basis of **average turnover of 2017-18, 2018-2019 and 2019-2020**. The service provider having highest average turnover in last three year will be awarded the contract. The ITR and audited balance sheet and profit & loss account shall be taken into account for arriving at average turnover.

13. PAYMENT PROVISIONS

- (a) The Service Provider shall make payment to its work force for period of 1st of the month to last day of the month and payment shall be made latest by 7th of the next month.
- (b) The payment shall be made on conclusion of the calendar month without waiting release of funds by CMSS. The payment may be made on the basis of number of working days for which duty has been performed by the personnel.
- (c) Service Provider will have to produce the register of wages or the register of wages-cum-master roll or biometric attendance records duly verified by the officers incharge of location where the staff is deployed, in respect of all the manpower deployed by him in the preceding month along with the bill for reimbursement for verification and tally to the nominated official of CMSS by the 2nd of the next month. After tallying, Service Provider will submit the bill of one month along with proof of payment and pay slips to his employees by the 7th of the next month after due verification by the Nodal Officer / authorized officer of CMSS. Proof of payment of EPF, ESI (if applicable) and any other mandatory deductions under Contract Labour Act to competent authority in respect of all the employees shall be submitted to CMSS along with the succeeding months' bills. The checklist of certificates and documents required to be submitted with each month's bills is given as **Annexure-VI**.
- (d) The Service Provider shall open Bank Account in SBI or any other bank (if not having any Bank Account currently) within 15 days of assumption of contract and maintain it until the duration of the contract. The Service Provider will also get the Saving Bank Accounts of all his employees opened in the Bank and deposit/transfer their wages directly to these accounts. He will also be required to provide the details of EPF and ESI accounts of all the staff deployed by him in CMSS, Delhi within one month of their deployment. **The Service Provider must provide to their employees EPF pass books issued by the Provident Fund Department within 30 days.**
- (e) The payment will be released after the deduction of any penalty that may be imposed by the Competent Authority as per contract agreement.
- (f) It will be the responsibility of the agency to deposit the component of the CTC and also the GST with concerned authorities where these components and GST are to be deposited. The CMSS will not be responsible for delay or default in case of on-compliance in this regard.
- (g) The service provider shall deploy the manpower specified in the schedule of quantities. The CMSS reserves the right to increase/decrease the minimum manpower in a given calendar year with the approval of the competent authority by giving the Service Provider a notice of 3 working days. The payment as per the contract agreement shall be regulated accordingly.
- (h) The Service Provider shall be liable and responsible to provide all the benefits viz. Provident Fund, ESI, Bonus, Gratuity, Leave, etc. to the staff engaged by him together with submission of form-C under 'The Payment of Bonus Act, 1965'. As far as EPF and ESI are concerned, it shall be the duty of the Service Provider to deposit the Employees share of EPF/ESI from the wages of the personnel engaged by him and supply the complete particular/details of each employee i.e. name, father's/husband's name, EPF/ESI account number, wages for the month & both employee's as well as

employer's shares to the CMSS by 7th of the following month along with soft & hard copy. It will be the responsibility of the Service Provider to provide certified details of manpower deployed by him on monthly basis in the 'CMSS' and to the Labour Department in appropriate format by 2nd of the succeeding month. Default on the part of the service provider in terms of payment to the employees by the 7th of the succeeding month will attract penalty at the rate of 2 percent per month calculated on the monthly wage bill of the concerned month.

- (i) In the event of default being made in the payment of any money in respect of wages of any person deployed by the Service Provider for carrying out this contract and if a claim therefore is filed in the office of the Labour Authorities and proof thereof is furnished to the satisfaction of the Labour Authorities, the 'CMSS' may, failing payment of the said money by the Service Provider make payment of such claim on behalf of the Service Provider to the said Labour Authorities/employee and any sums so paid shall be recoverable by the 'CMSS' from the Service Provider.
- (j) If any money, as the result of any instructions from the Labour authorities or claim or application made under any of the Labour laws, or Regulation, be directed to be paid by the 'CMSS', such money shall be deemed to be payable by the Service Provider to the 'CMSS' within seven days. CMSS shall be entitled to recover the amount from the Service Provider by deduction from money due to the Service Provider or from Performance Security along with administrative/departmental charges as provided in **clause-21(4) of the Contract Labour (Regulation & Abolition) ACT-1970(ACT No-37 of 1970).**
- (k) The service provider will allow CMSS or its authorized representative access to its records/premises to ascertain compliances.

14. PENALTY PROVISIONS:

(a) Failure to commence/execute work:

In case the service provider fails to commence/execute the contract as stipulated in the agreement, the CMSS reserves the right to impose and recover penalty as detailed below:

- (i) 5% of cost of complete order/agreement (for one year) per week for delays in commencement of work beyond two weeks of the placement of the order for up to four weeks delays.
- (ii) After four weeks delay the CMSS may cancel the agreement and get this job carried out preferably from any other agency from the open market. The difference in cost, if any, will be recovered from the defaulting service provider as damages and he shall also be black listed for a period of five years from participating in such type of tenders and his security deposit may also be forfeited, if so warranted.

(b) Absence of Manpower:

- (i) In case the employee reports late for duty or leaves his duty before time, a penalty of Rs 100/episode/employee may be imposed on the service provider and may be deducted from his monthly bill.

- (ii) The selected service provider shall immediately provide a substitute in the event of any person leaving the job due to his/her personal reasons or remaining absent without intimation. **The delay by the Agency in providing a substitute beyond three working days shall attract liquidated [damages@Rs.100/-per](#) day (per such case) on the service provider, besides deduction in payment on pro-rata basis.**

(c) **Delay in payment of salary:**

Default on the part of the service provider in paying salary on time to its employee or in the deposition of EPF/ESI, as applicable, shall attract penalty at the rate of 2 percent per month calculated on the monthly wage bill (of the concerned month) of that cadre of employees deployed in that area where delay has occurred.

(d) **Misconduct of personnel:**

In case any public complaint is received which is attributable to misconduct / regularized of service provider's personnel and as verified by the competent authority, a penalty of Rs.100/-for each such incident shall be levied and the same shall be deducted from service provider's bill. Further, the concerned guilty person shall be withdrawn by the service provider. Besides legal action as required under relevant rules/acts be also initiated against the guilty person by the Service Provider.

- (e) The Competent Authority for imposing the penalty shall be Director General and Chief Executive Officer, CMSS.

- (f) That in the event of any loss occasioned to the 'CMSS' as a result of any lapse on the part of the service Provider or his deployed staff and that would be established after an enquiry conducted by the 'CMSS', the said loss may be claimed from the Service Provider up to the value of the loss. The decision of CMSS will be final and binding on the Service Provider.

- (g) In case of breach of any terms and conditions stipulated in the contract, the performance security deposit of the service provider will be liable to be forfeited by CMSS besides annulment of the contract.

15. **JURISDICTION:**

In the event of any dispute arising out of the tender such dispute would subject to the jurisdiction of the Civil Court within the city of New Delhi only.

16. **INDEMNITY BOND:**

The service provider shall provide indemnity to CMSS for any illegal acts carried out by the manpower supplied to CMSS in its premises. The service provider shall be the "employer" for all purposes in respect of the manpower so provided and he shall be responsible for and ensure the implementation of the Labour and Industrial law. The service provider staff deployed/ persons deputed shall not claim any compensation/ absorption/ regularization of services with the first party i.e. CMSS in any case.

17. FORCE MAJEURE:

The terms and conditions mentioned herein shall be subject to Force Majeure which shall mean and be limited to the following:

- (a) Any war or hostilities
- (b) Any riot or civil commotion
- (c) Any earthquake, flood, tempest, lighting or other natural physical disaster, impossibility of the use of any Railway, Port, Airport, disaster, services or other means of transport;
- (d) Any strike or lock-out (only those exceeding 10 continuous days in duration affecting the performance of the seller's/CMSS obligations).

Annexure-I**Schedule-1 for Requirement at CMSS HQ., New Delhi**

SI No.	Description	Requirement	CTC salary per month
1	<u>Executive Asstts./DEOs & Housekeeping (Skilled, Semi-skilled & Un-skilled)</u> a) Administration b) Procurement, c) Finance d) Logistics e) Quality Assurance f) Housekeeping (Skilled) g) Housekeeping (Semi-skilled) h) Housekeeping (Un-Skilled)	04 03 10 06 02 10 04 <u>04</u> Total = 43 Nos.	As per Notification of Minimum Wages issued by Govt. of NCT of Delhi.

Schedule-2 for Requirement at 20 Warehouses of CMSS

SI No.	Description	Requirement [20 Warehouses of CMSS located in India]	CTC salary per month
1	Junior Pharmacists	20	As per Notification of Minimum Wages issued by Govt. of NCT of Delhi.
2	DEOs	16	
3	Housekeeping (Un-skilled)	<u>20</u> Total 56 Nos.	

Notes:

1. CTC Salary includes basic plus, HRA, Mediclaim, Conveyance, PF, ESIC insurance which the agency may pay to their employees as per their HR policy.
2. CTC Salary does not include GST and Service Charge. These components are to be charged over CTC as per column 6 of BOQ.

Annexure-II**TENDER FORWARDING LETTER**

(To be given on Company Letter Head)

Date:

To,

**DG&CEO,
Central Medical Services Society
II Floor , Viswa Yuvak Kendra
Teen Murti Marg
Chanakyapuri
New Delhi- 110021.**

Sub : Acceptance of Terms & Conditions of Tender.

Tender No. : **CMSS/Admn/255/2020**
Name of Tender: **PROVIDING Manpower for Executive Assistants/DEOs [Administration, Procurement, Accounts, Logistics and Quality Assurance], Housekeeping Staff (Skilled, Un-skilled) and Security Guards (Semi-skilled) for CMSS, H.Q., Delhi and Jr. Pharmacists, DEOs & Housekeeping (Un-skilled) for 20 locations of warehouse in different location of India.**

Dear Sir,

1. I/We have downloaded/obtained the tender document(s)for the above mentioned

‘Tender/Work’ from the web site(s) namely:

as per your advertisement, given in the above mentioned website(s).

2. I/Whereby certify that I/we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s),etc.),which form part of the contract agreement and I/we shall abide hereby by the terms /conditions /clauses contained therein.
3. The corrigendum(s) issued from time to time by your department/organization too has also been taken into consideration, while submitting this acceptance letter.
4. I /We hereby unconditionally accept the tender conditions of above mentioned tender document(s)/ corrigendum(s)in its totality/entirety.
5. I/We do hereby declare that our Firm has not been blacklisted/debarred by any Govt. Department/Public sector undertaking.
6. I/Whereby declare that bid will remain valid for a period of 120days after opening of Tender bid/packet1
8. I/We certify that all information furnished by our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/organization shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other right so remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully,

(Signature of the Bidder, with Official Seal)

Annexure-III**DETAILS OF EMD SUBMITTED**

We herewith submit the EMD as per schedule mentioned below of RTGS/ NEFT bearing Transaction No. _____ Dated: _____ from _____ Bank _____ Branch in favour of CMSS for the following Schedule.

Sl.No.	Schedule	EMD
1	Schedule -1	Rs. 2.00 Lakh
2	Schedule -2	Rs. 2.50 Lakhs

Signature and Seal of Bidder

Annexure-IV**DETAILS OF THE MANPOWER PROVIDED DURING THE LAST THREE YEARS****SCHEDUL-E- 1**

Sl.No.	Category of Manpower	Total No. of Persons	No. of Manpower	Name of the organization to which provided Govt./Private (Specify)	Value of Service Contract per annum	Remarks
1	Executive Assistants/ DEOs	25				
2	Housekeeping 1) Skilled 2) Semi-skilled (Security Guard) 3) Un-skilled	10 04 04				

SCHEDUL-E-2

Sl.No.	Category of Manpower	Total No. of Persons	No. of Manpower	Name of the organization to which provided Govt./Private (Specify)	Value of Service Contract per annum	Remarks
1.	Junior Pharmacist	20				
2.	DEOs	16				
3.	Housekeeping (Un-skilled)	20				

Copies of purchase orders/ Contract Agreement and invoices in support of performance statement may be uploaded along with this **Annexure-V**.

Signature and seal of the Tenderer_____

Annexure-V**ANNUAL TURN OVER STATEMENT**

The Annual Turnover of M/s. _____ for the past three years are given below and certified that the statement is true and correct.

Schedule-1

Sl. No.	Financial Year	Turnover in Lakhs (Rs)
1.	2017-2018	-
2.	2018-2019	-
3.	2019-2020	-
Total		- Rs. _____ Lakhs.

Schedule-2

Sl. No.	Financial Year	Turnover in Lakhs (Rs)
4.	2017-2018	-
5.	2018-2019	-
1.	2019-2020	-
Total		- Rs. _____ Lakhs.

Date:

Seal:

Signature of Auditor/
Chartered Accountant

(Name in Capital)

Annexure – VI**CHECK LIST**

1. Checklist – Annex-VI		Yes	No
2. EMD in the form of NEFT/RTGS kept in an envelope as per Annex-III / MSE certificate for exemption		Yes	No
3. Certificate by MSE/ SSI units in support of being a MSE/ SSI unit.		Yes	No
4. Duly attested photocopy of proof of registration with the Labour Dept., under the Contract Labour Act.		Yes	No
5. Duly attested photocopy of proof of PAN/ GIR No.		Yes	No
6. Duly attested photocopy of proof of GST Registration No		Yes	No
7. Duly attested photocopy of proof of EPF Registration No		Yes	No
8. Duly attested photocopy of proof of ESI Registration No		Yes	No
9. Documents showing completing contract at least one service of value not less than Rs. 40.00 Lakhs for Schedule-1 and Rs. 50.00 Lakhs for Schedule-2 per annum related to providing manpower in Govt./PSU		Yes	No
10. Certificate of satisfactory performance (with regard to manpower provided, salary provided to the employee in time and other statutory contribution i.e. ESI, EPF, etc.) from two organization /institutions served during the last three years.		Yes	No
11. Performa for Performance Statement		Yes	No
12. Affidavit stating that the agency/proprietors of the agency are/have not been blacklisted by Central/State Government/PSU		Yes	No

13. Annual Turnover Statement for 3 Years (Annex-V)		Yes	No
14. Copies of Balance Sheet & Profit & Loss Account for last three years		Yes	No
15. Mandate Form for RTGS		Yes	No
16. Self attested valid registration certificate under “Company Act/ Partnership/ MOU/ JVC”		Yes	No
17. Self attested valid License and Number under “Contract Labour Act”		Yes	No
18. Notarized Undertaking by MSE companies		Yes	No

Annexure-VII**NOTARISED UNDERTAKING BY MSE COMPANIES
(In 20- Rupees stamp paper)**

I _____, S/o _____, Proprietor / Partner / Managing Director of _____ (Proprietary Concern / Firm / Company Ltd.) execute this Undertaking for myself and on behalf of _____ (Proprietary Concern / Firm / Company Ltd.).

Whereas, CMSS (Tender Inviting Authority) has invited Tender for _____ and in pursuant to the conditions in the tender documents. M/s _____ (Proprietary Concern/ Firm / Company Ltd.), having _____ its _____ Office _____ at _____ is exempted from payment of Earnest Money Deposit as indicated in the Para 5(iv) of tender document.

And whereas, in pursuant to the conditions in Clause Nos. 5(vi) of the tender, the Earnest Money Deposit can be forfeited by the Tender Inviting Authority in case of violation of any of the conditions and for non-performance of the obligation under tender document.

In consideration of exempting M/s. _____ (Proprietary Concern/ Firm / Company Ltd.) from payment of Earnest Money Deposit as indicated in the **Annexure-III** of tender document, I undertake to pay the said sum without any demur on receipt of demand issued by the tender inviting authority.

M/s _____

for Self and Firm / Company Ltd.

Signature and Seal

Witness:-

(1)

(2)

DELETED

Annexure -IX**PACKET -2**
PRICE –BID**CENTRAL MEDICAL SERVICES SOCIETY**
NEW DELHI – 110021

TENDER FOR PROVIDING FOR EXECUTIVE ASSISTANTS, DEOs, HOUSEKEEPING STAFF (SKILLED, SEMI-SKILLED & UNSKILLED) AT CMSS HEADQUARTER, NEW DELHI-110021 AND JUNIOR PHARMACISTS, DEOs & HOUSEKEEPING (UN-SKILLED) FOR 20 WAREHOUSES OF CMSS

Schedule of price bid in the form of **BOQ_XXXX.xls** uploaded online.

(Below sheet is only for reference)

Item Wise BoQ

Name of Work: TENDER FOR HIRING OF MANPOWER AGENCY

Tender No: CMSS/ADMN./255/2020

Bidder Name						
<u>PRICE SCHEDULE</u>						
(This BOQ template must not be modified/replaced by the bidder and the same should be uploaded after filling the relevant columns, else the bidder is liable to be rejected for this tender. Bidders are allowed to enter the Bidder Name and Values only)						
NUMB ER #	TEXT #	TEXT #	NUMB ER #	TEXT #	NUMBER	NUMBER
Sl. No.	Post Description	Require ment	Nos.	CTC Salary for each calendar month	Service Charges of Agency per person in Rupees (Excl. GST)	Total Service charges of agency in Rupees as per Col. (4) (Excl. GST) [7=4*6]
1	2	3	4	5	6	7
	For Schedule-I					
1.01	Executive Assistant & DEO	Twenty five	25	Minimum Wages as per Notification of Govt. of NCT Delhi		
1.02	Housekeeping (Skilled)	Ten	10	Same as above		
1.03	Security Guard (Semi-skilled)	Four	4	Same as above		
1.04	Housekeeping (Un-Skilled)	Four	4	Same as above		
	For Schedule-II					
1.05	Junior Pharmacist & DEO	Thirty Six	36	Same as above		
1.06	Housekeeping (Un-Skilled)	Twenty	20	Same as above		

Note: GST will be paid extra to Agency as per applicable rates.

Schedule 1- Executive Assistants, DEOs, Housekeeping (Skilled & Un-skilled) and Security Guard (Semi-skilled)-Salary as per Minimum Wages Notification issued by Govt. of NCT of Delhi.

Schedule 2- Junior Pharmacists, DEOs & Housekeeping (Un-skilled)
- Salary as per Minimum Wages Notification issued by Govt. of NCT of Delhi.

Note: - The sum of total service charges mentioned in column 7 of Sl.No. 1.01,1.02, 1.03. & 1.04 for Schedule-I and Sl.No. 1.05 & 1.06 for Schedule -II will be considered for evaluation.

Annexure –X**MANDATE FORM**

01	Company Name	
02	Postal Address of the company with Telephone No., Fax No. and Mail ID.	
03	Name of the Managing Director / Director / Manager Mobile No. / Phone No. E-mail ID.	
04	Name and Designation of the authorized company official Mobile No. E-mail ID	
05	Name of the Bank . Branch Name& address. Branch Code No. Branch Manager Mobile No. Branch Telephone no. Branch E-mail ID	
06	9 digit MICR code number of the bank and branch appearing on the MICR cheque issued by the bank.	
07	IFSC code of the Branch	
08	Type of Account (Current / Savings)	
09	Account Number (as appear in Cheque book)	

(in lieu of the bank certificate to be obtained, please **attach the original cancelled cheque** issued by your bank for verification of the above particulars).

I /We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold M/s. Central Medical Services Society (CMSS) responsible. I have read the conditions of the tender/agreement entered and agree to discharge the responsibility expected of me / from the company as a tenderer /successful tenderer.

Date:

Company Seal

Signature

Place:

(Name of the person
Signing with designation)

CERTIFIED THAT THE PARTICULARS FURNISHED ABOVE BY THE COMPANY ARE
CORRECT AS PER OUR RECORDS.

Bank Seal with address.

Signature of the authorized
official of the bank.

Annexure-XI**Location details of CMSS 20 Warehouses for providing Junior Pharmacists, DEOs and Housekeeping Staff (Un-skilled)**

Sl.No.	Location	State	Manpower required			Total
			Jr. Pharmacist	DEO	Housekeeping (Un-skilled)	
1	Ahmedabad	Gujarat	1	1	1	3
2	Bangalore	Karnataka	1	1	1	3
3	Bhopal	Madhya Pradesh	1	1	1	3
4	Jajpur (Cuttak)	Odisha	1	1	1	3
5	Chandigarh	Chandigarh	1	1	1	3
6	Pathankot	Punjab	1	NIL	1	2
7	Chennai	Tamilnadu	1	1	1	3
8	Kirti Nagar	Delhi	1	1	1	3
9	Guwahati	Assam	1	1	1	3
10	Agartala	Tripura	1	NIL	1	2
11	Hyderabad	Telangana	1	1	1	3
12	Jaipur	Rajasthan	1	1	1	3
13	Kerala	Trivandrum	1	NIL	1	2
14	Kolkata	West Bengal	1	1	1	3
15	Lucknow	Uttar Pradesh	1	1	1	3
16	Srinagar	Uttarakhand	1	NIL	1	2
17	Mumbai	Maharashtra	1	1	1	3
18	Patna	Bihar	1	1	1	3
19	Ranchi	Jharkhand	1	1	1	3
20	Raipur	Chhattisgarh	1	1	1	3
Total						56

Annexure-XII**Instructions for Online Bid Submission**

The bidders are required to submit soft copies of their bids electronically on the CPP Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP portal.

More information useful for submitting online bids on the CPP Portal may be obtained at:

www.eprocure.gov.in

REGISTRATION:

- 1) Bidders are required to enroll on the e-Procurement module of the Central Public Procurement Portal (URL: www.eprocure.gov.in) by clicking on the link “**Online bidder Enrollment**” on the CPP Portal which is free of charge.
- 2) As part of the enrolment process, the bidders will be required to choose a unique username and assign a password for their accounts.
- 3) Bidders are advised to register their valid email address and mobile numbers as part of the registration process. These would be used for any communication from the CPP Portal.
- 4) Upon enrolment, the bidders will be required to register their valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage) issued by any Certifying Authority recognized by CCA India (e.g. Sify / n- Code / e-Mudhra etc.), with their profile.
- 5) Only one valid DSC should be registered by a bidder. Please note that the bidders are responsible to ensure that they do not lend their DSC’s to others which may lead to misuse.
- 6) Bidder then logs in to the site through the secured log-in by entering their user ID / password and the password of the DSC / e-Token.

SEARCHING FOR TENDER DOCUMENTS:

- 1) There are various search options built in the CPP Portal, to facilitate bidders to search active tenders by several parameters. These parameters could include Tender ID, Organization Name, Location, Date, Value, etc. There is also an option of advanced search for tenders, wherein the bidders may combine a number of search parameters such as Organization Name, Form of Contract, Location, Date, Other keywords etc. to search for a tender published on the CPP Portal.
- 2) Once the bidders have selected the tenders they are interested in, they may download the required documents / tender schedules. These tenders can be moved to the respective ‘My Tenders’ folder. This would enable the CPP Portal to intimate the bidders through SMS / e-mail in case there is any corrigendum issued to the tender document.

- 3) The bidder should make a note of the unique Tender ID assigned to each tender, in case they want to obtain any clarification / help from the Helpdesk.

PREPARATION OF BIDS:

- 1) Bidder should take into account any corrigendum published on the tender document before submitting their bids.
- 2) Please go through the tender advertisement and the tender document carefully to understand the documents required to be submitted as part of the bid. Please note the number of covers in which the bid documents have to be submitted, the number of documents - including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.
- 3) Bidder, in advance, should get ready the bid documents to be submitted as indicated in the tender document / schedule and generally, they can be in PDF / XLS / RAR / DWF/JPG formats. Bid documents may be scanned with 100 dpi with black and white option which helps in reducing size of the scanned document.
- 4) To avoid the time and effort required in uploading the same set of standard documents which are required to be submitted as a part of every bid, a provision of uploading such standard documents (e.g. PAN card copy, annual reports, auditor certificates etc.) has been provided to the bidders. Bidders can use “My Space” or “Other Important Documents” area available to them to upload such documents. These documents may be directly submitted from the “My Space” area while submitting a bid, and need not be uploaded again and again. This will lead to a reduction in the time required for bid submission process.

SUBMISSION OF BIDS:

- 1) Bidder should log into the site well in advance for bid submission so that they can upload the bid in time i.e. on or before the bid submission time. Bidder will be responsible for any delay due to other issues.
- 2) The bidder has to digitally sign and upload the required bid documents one by one as indicated in the tender document.
- 3) Bidder has to select the payment option as “offline” to pay the tender fee / EMD as applicable and enter details of the instrument.
- 4) Bidder should prepare the EMD as per the instructions specified in the tender document. The original should be posted/couriered/given in person to the concerned official, latest by the last date of bid submission or as specified in the tender documents. The details of the DD/any other accepted instrument, physically sent, should tally with the details available in the scanned copy and the data entered during bid submission time. Otherwise the uploaded bid will be rejected.

- 5) Bidders are requested to note that they should necessarily submit their financial bids in the format provided and no other format is acceptable. If the price bid has been given as a standard BoQ format with the tender document, then the same is to be downloaded and to be filled by all the bidders. Bidders are required to download the BoQ file, open it and complete the white coloured (unprotected) cells with their respective financial quotes and other details (such as name of the bidder). No other cells should be changed. Once the details have been completed, the bidder should save it and submit it online, without changing the filename. **If the BoQ file is found to be modified by the bidder, the bid will be rejected.**
- 6) The server time (which is displayed on the bidders' dashboard) will be considered as the standard time for referencing the deadlines for submission of the bids by the bidders, opening of bids etc. The bidders should follow this time during bid submission.
- 7) All the documents being submitted by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128 bit encryption technology. Data storage encryption of sensitive fields is done. Any bid document that is uploaded to the server is subjected to symmetric encryption using a system generated symmetric key. Further this key is subjected to asymmetric encryption using buyers/bid openers' public keys. Overall, the uploaded tender documents become readable only after the tender opening by the authorized bid openers.
- 8) The uploaded tender documents become readable only after the tender opening by the authorized bid openers.
- 9) Upon the successful and timely submission of bids (i.e. after Clicking "Freeze Bid Submission" in the portal), the portal will give a successful bid submission message & a bid summary will be displayed with the bid no. and the date & time of submission of the bid with all other relevant details.
- 10) The bid summary has to be printed and kept as an acknowledgement of the submission of the bid. This acknowledgement may be used as an entry pass for any bid opening meetings.

ASSISTANCE TO BIDDERS:

- 1) Any queries relating to the tender document and the terms and conditions contained therein should be addressed to the Tender Inviting Authority for a tender or the relevant contact person indicated in the tender.
- 2) Any queries relating to the process of online bid submission or queries relating to CPP Portal in general may be directed to the 24x7 CPP Portal Helpdesk Ph.:0120-4200462, 0120-4001002.

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